

Important Information for Tentative Rulings and Hearings:

1. Please review and follow the Tentative Ruling Instructions which can be found on the Court's website using the following link: <https://sf.courts.ca.gov/divisions/unified-family-court/ufc-tentative-rulings>.
2. If you wish to make an objection to the Tentative Ruling in your case, you must notify the other party (unless there is a restraining order in place) and the Court Clerk in the Department where the hearing is scheduled of your objection by 4:00 PM the Court day prior to the hearing date. Court days do not include Court holidays, Saturdays, or Sundays. The Court's Holiday Schedule can be found on the Court's website using the following link: <https://sf.courts.ca.gov/general-information/holiday-schedules>.
3. To contact the Court Clerk in Dept. 403 to make an objection to the Tentative Ruling in your case, please call (415) 551-3741 or send an email to Department403@sftc.org.
4. To contact the Court Clerk in Dept. 404 to make an objection to the Tentative Ruling in your case, please call (415) 551-3744 or send an email to Department404@sftc.org.
5. To contact the Court Clerk in Dept. 414 to make an objection to the Tentative Ruling in your case, please call (415) 551- 3756 or send an email to Department414@sftc.org.
6. When you contact the Court Clerk to make an objection to the Tentative Ruling in your case, please specify the paragraph(s) and / or line number(s) of the Tentative Ruling which contains the language to which you object.
7. You may appear at your hearing either (a) in-person; (b) by video; or (c) by phone. Pursuant to SFLR 11.7(D)(4), if you choose to appear by video or phone, you must be continuously connected to Zoom from 8:50 a.m. until 12:00 p.m. or until your hearing is concluded (or from 1:20 p.m. until 4:30 p.m. or until your hearing is concluded, if your hearing is scheduled to start at 1:30 p.m.). If you fail to appear in-person, by video, or phone, the Court may proceed with the hearing in your absence. The Court is not required to contact you before your hearing.
8. If you choose to appear by video or by phone, you must comply with the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth below.

**SAN FRANCISCO SUPERIOR COURT
UNIFIED FAMILY COURT
NOTICE AND INSTRUCTIONS FOR REMOTE APPEARANCES**

You may appear at your court hearing either (1) in-person or (2) remotely by video or telephone. If you fail to appear in-person or remotely by video or telephone, the court may proceed with the hearing in your absence. **The clerk will NOT contact you.** Remote appearances by video or telephone can be made utilizing the **ZOOM** platform, **effective January 2, 2024:**

- If you are *joining by video*, go to www.zoom.com/join and follow the instructions below:
 - Type in the Meeting ID (*see below for department Meeting IDs and Passcodes*) and click "Join".
 - Click "Launch Meeting" then "Open zoom.us".
 - Zoom will launch and you will be asked for the Meeting Passcode. *Enter the passcode for your Meeting ID for the respective department for your court hearing.*
 - Enable your camera and click "Join".
 - Once you join, a prompt to use computer audio will appear, click "Join with Computer Audio".
 - **Enter your full first and last name TO IDENTIFY YOURSELF TO THE COURT.**
 - Using headphones may help you hear more clearly.
- If you are *joining by phone*, dial 1-(669)254-5252 or 1-(669)216-1590 and enter the Meeting ID and Passcode as described below.

Department 403
Meeting ID: 161 463 0304
Passcode: 114482

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1614630304?pwd=OTZ1cVZaQlRYWXPfQ2hTaEFuZnhIZz09>

Department 404
Meeting ID: 161 305 3325
Passcode: 282709

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1613053325?pwd=SkdXWGVkQkowckJSNnJwSSStYkR6dz09>

Department 414
Meeting ID: 161 123 0725
Passcode: 040696

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1611230725?pwd=d1JPVDZmSEZTMlpuODhJVTZ4ZE1FZz09>

When you join the hearing on Zoom:

1. **You are to mute your audio when you are not speaking.**
2. State your name before you speak for proper identification to the court and for all the parties in your case. Only one person **MUST** speak at a time.

PROHIBITION ON RECORDING: **Do not record the hearing in any way.** Any recording of a court proceeding, *including screen shots, other visual or audio copying* of the hearing, is **prohibited**. Any violation is punishable to the fullest extent under the law, including but not limited to monetary sanctions up to \$1,000, restricted entry to future hearings, or other sanctions deemed appropriate by the court.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

LUCIA WATERMAN,

Petitioner

VS.

MATTHEW CHARLES,

Respondent

) Case Number: FPT-25-378598

) Hearing Date: July 2, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

OTHER REVIEW HEARING

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Lucia Waterman (Mother) and Respondent Matthew Charles (Father).
The minor child subject to this proceeding is Lyla Waterman Charles (DOB 09/23/2022).
- 2) On March 28, 2025, Mother filed an ex parte Request for Temporary Emergency Orders for an interim custody and visitation schedule. The Court issued temporary orders awarding the parents joint legal and physical custody of the child. Father was granted temporary visitation (parenting time) as follows:
 - a. Every Monday from 8:30 AM to 12:30 PM;
 - b. Every Tuesday from 8:15 AM until drop off at school;
 - c. Every Wednesday from 8:30 AM to 4:30 PM; and
 - d. Every Saturday from 8:30 AM to 6:30 PM.
- 3) The parties were referred to Family Court Services for mediation with a return court date of June 3, 2025.

- 1 4) On June 3, 2025, the court reaffirmed its temporary order of joint legal and physical custody of
2 the child and set out a detailed step-up parenting time schedule. The parenting schedule for Father
3 was ordered, effective August 22, 2025, as follows:
 - 4 a. Every Monday from 8:30 AM until 4:30 PM;
 - 5 b. Every Wednesday from 8:30 AM until 4:30 PM; and
 - 6 c. Every other Friday from 4:30 PM Sunday at 6:30 PM.
- 7 5) A review hearing was set on January 13, 2026, and the parties were referred to Family Court
8 Services for mediation regarding parenting time issues and a holiday schedule.
- 9 6) On December 4, 2025, the parties filed a Stipulation and Order regarding Child Custody in which
10 they agreed to continue to share joint legal and physical custody of Lyla. The parties also agreed
11 to a parenting plan for Father every Tuesday and Thursday from 8:30 AM until 4:30 PM. Father
12 would not have in person parenting time with Lyla on Mondays and Wednesdays each week but
13 would continue to have parenting time with Lyla every other weekend from Friday at 6:30 PM to
14 Sunday at 6:30 PM. The parties also agreed that if either parent will be away from Lyla for four
15 consecutive days or more as a result of the regular or holiday or vacation schedule, the custodial
16 parent shall facilitate a 15-minute Facetime Call with the noncustodial parent during that period.
- 17 7) The parties attended Family Court Services mediation on December 15, 2025, but were unable to
18 come to any further agreement on visitation.
- 19 8) On December 23, 2025, Mother filed a declaration requesting the current parenting schedule
20 remain in place pending a further review hearing and contending that Father's requested 50/50
21 timeshare would be detrimental to Lyla. Mother requests that a further review hearing on
22 parenting time be scheduled in 6 months.
- 23 9) On December 24, 2025, Father filed a declaration for the review hearing requesting a 50/50
24 parenting plan of 2-2-5-5 and asserting that a 2-2-5-5 parenting plans is in the child's best
25 interests.
- 26 10) On December 15, 2025, the parties attended mediation and were unable to reach an agreement on
27 parenting time and co-parent counseling.
 - 28 a. Mother requests that Father's current parenting schedule remain in place, and she does
29 not agree to participating in co-parenting counseling.

- b. Father requests a 2-2-3 parenting plan and that the parents participate in co-parent counseling with the cost being shared by both parents.

11) On January 13, 2026, a further review hearing was held and the Court issued the following orders:

- a. Review hearing set on July 2, 2026 for review of child custody and parenting plan.
- b. The current parenting plan as set forth in the Stipulation and Order filed December 4, 2025 shall remain the continued parenting schedule pending the review hearing scheduled below.
- c. The parents are ordered to attend co-parent counseling with the cost shared equally by both parties.
- d. All current orders not in conflict with this order shall remain in full force and effect.

12) On June 18, 2026, Father filed an update declaration, which has been read and considered by the Court.

13) On June 22, 2026, Mother filed an update declaration, which has been read and considered by the Court.

B. Findings and Order

1) This court has jurisdiction to make child custody orders in this case under the Uniform Child Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in violation to civil or criminal penalties, or both. The country of habitual residence of the minor child(ren) is the United States.

2) The parenting plan shall be modified to a rotating 2/2/3 schedule, which will commence on Sunday, July 5, 2026. The schedule shall be implemented as follows:

- a. Commencing the week of July 5, 2026: Mother shall have care and custody of the minor child on Monday and Tuesday; Father shall have care and custody of the minor child on Wednesday and Thursday; and Mother shall have Friday – Sunday.
- b. Commencing the week of July 12, 2026: Father shall have care and custody of the minor child on Monday and Tuesday; Mother shall have care and custody of the minor child on Wednesday and Thursday; and Father shall have Friday – Sunday.
- c. The above noted schedule will alternate weekly as stated above.

1 d. Exchange times will occur Mondays, Wednesdays, and Fridays at 8:30 a.m. The
2 receiving parent will pick up the minor child from the other parent.

3 3) Both parents shall have one video call with the minor child, during each day of the other parent's
4 custodial time. The video calls shall occur between the hours of 6:30 p.m. – 7:30 p.m. The video
5 calls shall not be in any duration longer than 15 minutes.

6 4) All current orders not in conflict with this order shall remain in full force and effect.

7 5) Counsel for Mother shall prepare the Findings and Order After Hearing.

8 6) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
9 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
10 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
11 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
12 proposed order after hearing directly to the court. Failure to submit the order after hearing within
13 10 days may allow the other party to prepare a proposed order and submit it to the court in
14 accordance with CA Rules of Court, Rule 5.125(d).

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

GILBERT ANTHONY MILAM JR,

Petitioner

VS.

SOPHIA TAGABAN,

Respondent

) Case Number: FDI-10-773668

) Hearing Date: July 2, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER: SEE # 7: SET ASIDE OF JUDGMENT FILED ON 12/31/2019

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Gilbert Anthony Milam Jr. and Sophia Tagaban.
- 2) On 11/24/10, Petitioner filed a Petition for Dissolution commencing the case.
- 3) On 12/31/19, Judgment of Dissolution was entered, which incorporates a Marital Settlement Agreement (MSA). The MSA states that the parties were married on 10/7/08 and separated on 11/23/10 for a marriage of 2 years and 1 month. The parties share one child: Janelle (DOB: 7/27/07). The judgment provides for a global settlement of the case.
- 4) On 5/8/26, Respondent filed a Request for Order seeking to set aside the parties' Judgment of Dissolution filed 12/31/19 and \$30,000 in attorney's fees and costs. Respondent seeks to set aside the judgement alleging the MSA was procured by fraud, duress, coercion, perjury, and lack of full financial disclosure. Alternatively, Respondent seeks enforcement of an oral agreement that Petitioner buy Respondent a home valued between 1 -2 million dollars, which Respondent believes was wrongfully omitted from the MSA.

- 5) On 5/8/26, Respondent filed a Request for Judicial Notice of the Marital Settlement Agreement attached as Exhibit A; FL-170 attached as Exhibit B; and FL-141 attached as Exhibit C.
- 6) On 5/8/26, Respondent filed Declaration of Martin Tagaban April.
- 7) On 5/8/26, Respondent filed Declaration of April Martinez.
- 8) On 5/8/26, Respondent filed Declaration of Amanda Jones.
- 9) On 6/18/26, Petitioner filed a Responsive Declaration in opposition to Respondent's Request for Order attached to which is a Declaration of attorney Rodrigo D. Dias and a Memorandum of Points and Authorities. Petitioner (a) refutes Respondent's allegations of fraud, duress, coercion, perjury, and lack of full financial disclosure; (b) asserts that the MSA is a comprehensive, integrated document reflecting the complete agreement of the parties; and (c) agrees that he discussed the possibility of purchasing a home for Respondent, which he states was not an express commitment or consideration for any of the terms of the divorce settlement.
- 10) On 6/24/26, Respondent filed a Declaration Regarding Clerical Error which states counsel for Respondent inadvertently missed uploading the Memorandum of Points and Authorities.
- 11) On 6/24/26, Respondent filed a Memorandum of Points and Authorities.
- 12) On 6/24/26, Respondent filed an Income and Expense Declaration.

B. Findings and Order

- 1) The Court takes judicial notice of the following documents in the Court docket:
 - a. Declaration Regarding Service of Declaration of Disclosure filed 12/5/19;
 - b. Declaration for Default or Uncontested Dissolution (FL-170) filed 12/26/19; and
 - c. Judgment of Dissolution filed 12/31/19.
- 2) Respondent's request to set aside the parties' Judgment of Dissolution filed 12/31/19 is DENIED as untimely.
- 3) Respondent's request is governed by Family Code section 2122, which provides explicit time restrictions on actions brought on the following relevant grounds as follows:
 - a. Actual fraud: within one year after the date on which Respondent discovered or should have discovered the fraud.
 - b. Perjury in financial disclosures: within one year after the date on which Respondent discovered or should have discovered the perjury.

- c. Duress: within two years after the date of entry of judgment.
 - d. Mistake: within one year after the date of entry of judgment.
 - e. Failure to comply with the disclosure requirements: within one year after the date on which Respondent discovered or should have discovered the failure to comply.
- 4) The Judgment of Dissolution was entered on 12/31/19, which is 6 years, 4 months, and 8 days from 5/8/26 (i.e., the filing date of Respondent's Request for Order).
- 5) It is undisputed that at the time of the signing of the MSA on 12/5/19, Respondent knew (and discussed with Petitioner and counsel for Petitioner) that any oral agreement regarding Petitioner buying a home for Respondent was not included in the MSA.
- 6) As such, the Court finds the Family Code section 2122-time restrictions began to run on 12/5/19 (date of signing) or 12/31/19 (date judgment was entered).
- 7) Respondent argues that the time restrictions began to run on the child's 18th birthday (7/7/25), when Petitioner informed Respondent that he would not purchase her a home and 11/3/25, when Respondent retained counsel who advised her that she was never given proper financial disclosures.
- 8) The Court is not persuaded by Respondent's arguments as a preponderance of the evidence shows that Petitioner is under no legal obligation under the Family Code to purchase Respondent a home. Further, the Court's file and the terms of the judgment reflect Petitioner's compliance with financial disclosures. For example, Petitioner's Declaration Regarding Service of Declaration of Disclosure was filed on 12/5/19 and both parties signed a Stipulation and Waiver of Final Declaration of Disclosure on 12/5/19. Further, the judgment includes provisions regarding voluntariness of the agreement (section 2.2), warranties regarding community property (section 4.4.1 – 4.4.5), and representation of counsel (section 10).
- 9) Finally, Family Code section 2123 states, "a judgment may not be set aside simply because the court finds that it was inequitable when made, nor simply because subsequent circumstances caused the division of assets or liabilities to become inequitable, or the support to become inadequate."
- 10) Respondent's request for Family Code section 2030 attorney's fees is DENIED as improperly plead.

1 11) Counsel for Petitioner shall prepare the Findings and Order After Hearing.

2 12) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
3 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
4 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
5 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
6 proposed order after hearing directly to the court. Failure to submit the order after hearing within
7 10 days may allow the other party to prepare a proposed order and submit it to the court in
8 accordance with CA Rules of Court, Rule 5.125(d).

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

DEXANDRO MONTALVO,

Petitioner

VS.

LEE LUNDRIGAN,

Respondent

) Case Number: FDI-19-792192

) Hearing Date: July 2, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

ORDER TO SHOW CAUSE AND AFFIDAVIT FOR CONTEMPT

TENTATIVE RULING

The parties are ordered to appear. The parties may appear in person in Department 403 or remotely by Zoom video. If a party chooses to appear by video, that party must abide by the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth above.

On for hearing is Petitioner Dexandro Montalvo's Order to Show Cause and Affidavit for Contempt file dated 6/3/25 alleging that Respondent Lee Lundrigan is noncompliant with spousal support orders.

Petitioner asserts Respondent owes Petitioner \$65,769 in unpaid spousal support (excluding statutory interest).

At the prior 5/14/26 hearing, the Court ordered Respondent Lee Lundrigan to file an Income and Expense Declaration if Respondent seeks appointment of contempt counsel to represent him in this contempt action. The Court advised Respondent that he can also hire his own attorney. See 5/14/26 Minute Order. Respondent did not file an Income and Expense Declaration.

At the prior 6/23/26 hearing, the Court admonished Respondent for failing to file an Income and Expense Declaration and ordered Respondent to do so by close of business on 6/26/26. The Court continued the

1 matter to 7/2/26 for possible appointment of contempt counsel to Respondent and Respondent's
2 arraignment. See 6/23/26 Minute Order. Respondent did not file an Income and Expense Declaration.

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4 **The parties are ordered to appear** at hearing on 7/2/26 for Respondent's arraignment.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

ALEJANDRO PALMA,

Petitioner

VS.

SANDRA ROSALIA PALMA,

Respondent

) Case Number: FDI-24-799388

) Hearing Date: July 2, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER RE: BIFURCATION OF MARITAL STATUS

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Alejandro Palma and Respondent Sandra Rosalia Palma.
- 2) On 3/19/26, Petitioner filed a Request for Order seeking bifurcation of trial and termination of marital status.
- 3) On 3/9/26, Petitioner filed a Memorandum of Points and Authorities.
- 4) On 4/16/26, Petitioner filed a Proof of Service by Mail indicating service was effectuated on 3/30/26.
- 5) Respondent did not file a Responsive Declaration.
- 6) The Court notes Petitioner filed a Declaration Regarding Service of Declaration of Disclosure stating that Petitioner's Preliminary Declaration of Disclosure was served on the other party by mail on 12/22/25.
- 7) At the prior 5/9/26 hearing, the Court ordered:
 - a. Public policy favors bifurcation and termination of marital status.

1 b. The Court finds that Petitioner's request for bifurcation of trial and termination of marital
2 status is unopposed.

3 c. However, Petitioner did not submit form FL-315 (Request for Separate Trial) with the
4 Request for Order, which is a mandatory form (i.e., required for the Court to adjudicate
5 this issue).

6 d. As such, this matter is continued to 7/2/26 at 9 AM in Dept. 403.

7 e. Petitioner shall file and serve form FL-315 (Request for Separate Trial) at least 10
8 calendar days in advance of the next hearing.

9 8) Petitioner did not file and serve form FL-315 (Request for Separate Trial).

10 **B. Findings and Order**

11 1) Petitioner did not file and serve form FL-315 (Request for Separate Trial), which is a mandatory
12 form (i.e., required for the Court to adjudicate this issue) despite being provided additional time
13 to cure this defect.

14 2) As such, the hearing on Petitioner's 3/19/26 Request for Order is VACATED and Petitioner's
15 request for bifurcation of trial and termination of marital status DENIED without prejudice.

16 3) The Court will prepare the Findings and Order After Hearing.
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SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

DANIELA MARTINEZ,

Petitioner

VS.

JORGE ESPINOZA OCHOA,

Respondent

) Case Number: FDI-24-800166

) Hearing Date: July 2, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER RE: STRIKE RESPONDENT'S RESPONSE TO DISSOLUTION AS A
TERMINATING SANCTION AND TO ALLOW PETITIONER TO PROCEED BY DEFAULT

TENTATIVE RULING

The parties are ordered to appear. The parties may appear in person in Dept. 403 or remotely by Zoom video. If a party chooses to appear by video, that party must abide by the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth above.

A. Procedural History

- 1) The parties are Petitioner Daniela Martinez and Respondent Jorge Espinoza Ochoa.
- 2) On 5/15/26, Petitioner filed a Request for Order seeking to strike Respondent's Response and Request for Dissolution as a terminating sanction to permit Petitioner to proceed by default due to Respondent's noncompliance with disclosure requirements.
- 3) On 5/15/26, Petitioner filed a Memorandum of Points and Authorities.
- 4) On 6/22/26, Respondent filed a Responsive Declaration in opposition to Petitioner's Request for Order. Respondent states he commits to serving his Preliminary Declaration of Disclosure (PDD) before the Court hearing.

B. Findings and Order

- 1) **The parties are ordered to appear** and shall be prepared to inform the Court whether Respondent complied with the mandatory disclosure requirements set forth in Family Code section 2104 (i.e., served his PDD on Petitioner).

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

MARINA NELSON,

Petitioner

VS.

BEN NELSON,

Respondent

) Case Number: FDI-24-800674

) Hearing Date: July 2, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER RE: CHILD CUSTODY, VISITATION (PARENTING TIME)

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Marina Nelson (Mother) and Respondent Ben Nelson (Father). The minor children subject to this proceeding are Zara Nelson (DOB: 04/15/11) and Xio Nelson (DOB: 02/18/16).
- 2) On June 11, 2026, Father filed an ex parte application, which was granted by the Court. The Court set the matter for hearing on an Order Shortening Time. In particular, the Court granted Father temporary sole legal and physical custody of both children and, pending hearing, ordered Mother to have no contact with the minor children, or in the alternative professionally supervised visitation. The Court further ordered Father to serve his Request for Order on Mother no later than June 18, 2026.
- 3) On June 30, 2026, the Court received communication from Father that he intended to drop his hearing from calendar. The Court also notes that it does not appear that Father has served his moving paperwork.

B. Findings and Order

- 1) Given that the moving party has requested that the matter be dropped and given that it appears the moving documents have not been served, the Court hereby drops the matter from calendar.
- 2) The Court vacates its child custody and visitation orders that were issued on June 11, 2026. Any and all prior orders for custody and visitation issued before June 11, 2026 shall become the operative orders of the Court.
- 3) Counsel for moving party shall prepare the Findings and Order After Hearing.
- 4) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the proposed order after hearing directly to the court. Failure to submit the order after hearing within 10 days may allow the other party to prepare a proposed order and submit it to the court in accordance with CA Rules of Court, Rule 5.125(d).

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

RUBY LIU,

Petitioner

VS.

LEANDRO COIMBRA RODRIGUES,

Respondent

) Case Number: FDI-24-800682

) Hearing Date: July 2, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER: MOTION TO COMPEL PETITIONER'S FINANCIAL DISCLOSURE AND
REQUEST FOR SANCTIONS

TENTATIVE RULING

The parties are ordered to appear. The parties may appear in person in Dept. 403 or remotely by Zoom video. If a party chooses to appear by video, that party must abide by the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth above.

A. Procedural History

- 1) The parties are Petitioner Ruby Liu and Leandro Coimbra Rodrigues. They married on 6/27/22 and they agree they separated on 12/16/25, for a marriage of 2 years and 6 months. They have no minor children in common.
- 2) After hearing on 11/20/25, the Court issued an order for \$395 in temporary monthly spousal support payable by Respondent and awarded Petitioner \$2,500 in attorney's fees (See Findings and Order After Hearing (FOAH) filed 12/11/25).
- 3) At the prior 4/30/26 hearing, the Court issued the following orders (See FOAH filed 6/3/26):
 - a. As a preliminary issue, Petitioner's request for the Court to order Respondent to notice Petitioner of any change in employment status is GRANTED as the Court issued an Earnings Assignment Order on 12/31/25.
 - b. Respondent shall notice Petitioner of any change in employment status within 7 days.

- 1 c. Petitioner's request for bifurcated trial on termination of marital status and validity of the
2 Prenuptial Agreement is GRANTED.
- 3 d. The matter is set for a long-cause hearing on 8/18/26 and 8/19/26 at 1:45 PM in Dept.
4 403.
- 5 e. The Status Conference on 6/26/26 is hereby vacated.
- 6 4) On 5/8/26, Petitioner filed a Request for Order seeking terminating sanctions due to abuse of
7 discovery, litigation misconduct, and failure to follow court orders. Petitioner asserts Respondent
8 has ignored demands for production and interrogatories. Petitioner alleges that Respondent is
9 intentionally underemployed and owes \$1,300 in arrears. Petitioner further asserts that
10 Respondent is weaponizing litigation to halt discovery. Petitioner lists 14 specific requests of the
11 Court on page 8 and 9 of her Request for Order. The matter was set for hearing on 6/30/26.
- 12 5) On 5/18/26, Respondent filed a Responsive Declaration in opposition to Petitioner's Request for
13 Order filed 5/8/26. Respondent asserts that he has made good faith efforts to comply with
14 discovery requests, and while he admits to some late or incomplete responses, such responses
15 were unintentional and because he is self-represented. Respondent further asserts that the
16 Petitioner's discovery requests are excessive and burdensome. Respondent alleges Petitioner has
17 not served a complete Preliminary Declaration of Disclosure (PDD).
- 18 6) On 5/18/26, Respondent filed a Motion to Compel Petitioner's financial disclosures. Respondent
19 asserts that he has provided Petitioner with his financial information, but she has not reciprocated,
20 and that her lack of disclosure has been prejudicial to him. Respondent requests monetary
21 sanctions against Petitioner for her failure to comply with disclosure requirements. The matter
22 was set for hearing on 7/2/26.
- 23 7) On 6/3/26, Petitioner filed a Responsive Declaration to Respondent's Request for Order filed
24 5/18/26. Petitioner alleges that Respondent's Request for Order is defective due to lack of
25 service; however, she agrees to the matter being heard for the sake of judicial economy.
- 26 8) On 6/3/26, Petitioner filed a Motion to Compel, which is on calendar in Dept. 405A on 9/4/26.
- 27 9) On 6/30/26, the Court continued the 6/30/26 hearing to 7/2/26 to adjudicate Petitioner's Request
28 for Order filed 5/8/26 and Respondent's Request for Order filed 5/18/26 on the same date.
- 29 10) The Court notes the following additional pleadings:

- a. Petitioner filed a Declaration Regarding Service of Declaration of Disclosure on 2/26/25 stating that Petitioner's Preliminary Declaration of Disclosure was served on the other party by mail on 1/13/25 (which Petitioner amended in a PDD file dated 4/18/25).
- b. Respondent filed an Income and Expense Declaration on 7/18/25.
- c. Petitioner attached an Income and Expense Declaration and copy of the parties' PNA to her 9/3/25 Request for Order.
- d. Respondent filed a Declaration Regarding Service of Declaration of Disclosure on 2/25/26 stating that Petitioner's Preliminary Declaration of Disclosure was served on the other party by mail but does not specify a date.

B. Findings and Order

- 1) **The parties are ordered to appear.**

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

RAY WESLEY SUDDABY JR,

Petitioner

VS.

OLGA ALEXANDROVNA SUDDABY,

Respondent

) Case Number: FDI-25-802208

) Hearing Date: July 2, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER RE: PROPERTY CONTROL, FL-150 / FL-160 AND DISCLOSURE
CORRECTIONS

TENTATIVE RULING

The Court finds good cause to GRANT Respondent's Request to Reschedule filed 6/24/26 as both
Petitioner's Request for Order filed 5/15/26 (which is on calendar on 7/2/26) and Respondent's Request
for Order filed 6/8/26 (which is on calendar on 7/30/26) concern interrelated issues and therefore should
be heard on the same date. In addition, the parties have a Domestic Violence Restraining Order hearing
on 7/10/26 in related case no. FDV-26-819161. Accordingly, Petitioner's Request for Order filed 5/15/26
is **continued to 7/30/26 at 9 AM in Dept. 403.** No appearances are required on 7/2/26.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

TROYCE SPEARS JR.,

Petitioner

VS.

LATOIA WALKER,

Respondent

) Case Number: FDV-22-816492

) Hearing Date: July 2, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER: CHANGE IN HEALTHCARE AND HEALTH INSURANCE

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Troyce Spears Jr. (Father) and Respondent Latoia Walker (Mother).
- 2) The share one minor child: Josiah, age 6.
- 3) On 5/28/26, Mother filed an ex parte Request for Order seeking modification of the current custody and visitation stipulation and order.
- 4) On 5/28/26, Mother's request for emergency relief was denied pending hearing set for 7/2/26.
- 5) There is no Proof of Service on indicating that Father was noticed of the 7/2/26 hearing date.
- 6) Father did not file a Responsive Declaration.

B. Findings and Order

- 1) The Court finds that Mother's 5/28/26 Request for Order was not served at least 16 Court days prior to the hearing date as required by Code of Civil Procedure section 1005(b).
- 2) As such, this matter is **continued to Monday, 7/27/26 at 9 AM in Dept. 403** for lack of service.
- 3) At least 16 Court days prior to the next hearing date, Mother shall file and serve on Father the (a) 5/28/26 Request for Order and 5/28/26 Temporary Emergency (Ex Parte) Order, (b) Continuance

1 Order contained herein, and (c) Tentative Ruling Instructions using a service method authorized
2 by the Code of Civil Procedure (i.e., a person over the age of 18 shall mail to Father the (a)
3 5/28/26 Request for Order and 5/28/26 Temporary Emergency (Ex Parte) Order, (b) Continuance
4 Order, and (c) Tentative Ruling Instructions, and then Mother shall file form FL-335 (Proof of
5 Service) with the Court confirming service was effectuated).

6 4) At least 9 Court days prior to the next hearing date, Father may file a Responsive Declaration.

7 5) At least 5 Court days prior to the next hearing date, Mother may file and serve a Reply
8 Declaration.

9 6) The Court will prepare the Findings and Order After Hearing.
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SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

PAMELA GREEN SIECK,

Petitioner

VS.

CHRISTOPHER MICHAEL SIECK,

Respondent

) Case Number: FDV-26-819014

) Hearing Date: July 2, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER: CHILD CUSTODY, VISITATION (PARENTING TIME), ENTER
CONFORMING FIRST AMENDED TRO PER 4/1/2026 ORDER; OR OST

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner, Pamela Green Sieck (Mother) and Respondent, Christopher Michael Sieck (Father). The minor child subject to this proceeding is Eugene Michael Sieck(DOB 02/07/20).
- 2) On June 9, 2026, Father filed an ex parte Request for Temporary Emergency Orders for an interim custody and visitation schedule. In particular, Father was seeking the following orders:
 - a. Sign and enter the attached [Proposed] First Amended Restraining Order; conform DV-140 custody/Visitation to the Napa Final Statement of Decision per the 04/01/26 supersession order; life DV-140 Item 5; add Our Family Wizard exception at DV-110 Item 11(b)(3); preserve all other protective provisions;
 - b. Alternatively, set hearing on shortened time in Dept. 403 by June 12, 2026, so the order entered before June 15, 2026, so the order is entered before June 15, 2026 at 8:00 a.m., when Respondent's parenting week begins under the Napa Schedule.

- 1 c. At minimum, refer to Dept. 405 for determination at the June 15, 2026, 1:30 p.m.,
2 hearing, with the first exchange upon entry that day.
- 3 3) On June 9, 2026, the Court called the parties to hear the matter and the Court issued the following
4 orders:
- 5 a. Father's visitation shall continue to be temporarily suspended.
- 6 b. Counsel for Mother indicated Judge Chan intended to review the child custody/visitation
7 issues at the June 15, 2026, trial setting conference.
- 8 c. So as not to have conflicting orders, and in light of the new information received from
9 Mother's counsel regarding a criminal investigation of Father, this Court will grant
10 Father's request for an Order Shortening Time for Service and Hearing. The
11 custody/visitation issues shall be heard on June 15, 2026 at 1:30 p.m., in Department 405.
- 12 4) On June 15, 2026, Judge Chan issued the following orders relevant to child custody and
13 visitation:
- 14 a. Respondent's RFO filed on June 9, 2026 is re-set for hearing on 07/02/09 at 9:00 a.m., in
15 Department 403.
- 16 b. The Court ordered both parties to attend remote FCS mediation on June 30, 2026 at 9:00
17 a.m. with Juanita Quintero for Respondent's requests for visitation.
- 18 c. The Court ordered Tier 2 for FCS mediator to contact Sgt. Foxworth, (private contact
19 information not included herein) to find out the status of the criminal investigation. Both
20 parties waived confidentiality for FCS mediator to conduct Tier 2 interview.
- 21 d. Mother requests for minor's counsel and will to pay for costs. Parties are ordered to meet
22 and confer on this issue. If no agreement reached, request for appointment of minor's
23 counsel shall be addressed at the hearing on July 2, 2026.
- 24 5) On June 29, 2026, Mother filed a "Declaration of Jacqueline Singer, PhD," which has not been
25 read nor considered by the Court. The declaration is hearsay not subject to any exception.
- 26 6) On June 29, 2026, FCS completed a Tier 2 Report, which has been read and considered by the
27 Court.

28 **B. Findings and Order**

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- 1) This court has jurisdiction to make child custody orders in this case under the Uniform Child Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in violation to civil or criminal penalties, or both. The country of habitual residence of the minor child(ren) is the United States.
- 2) The Court confirms the orders from Napa County contained within the Judgment filed in Napa County on May 15, 2026, which provide that **both parents shall share joint legal and joint physical custody** of the minor child, Eugene Sieck (02/07/20). As this Court stated previously, it will defer to the orders issued out of Napa County.
- 3) As to parenting time, the court will also defer to the Napa County orders, which state as follows: “Commencing the week of March 29, 2026, **Mother and Father will alternate custody of Eugene on a week on/week off basis**, with exchanges to take place at Eugene’s school every Monday at start of school.”
- 4) Given that Father has missed a significant amount of time with Eugene, the Court orders the Father shall have care and custody of the minor child from **July 2, 2026 through Monday, July 13, 2026**. Thereafter, the parties shall follow the Napa County Judgment filed on May 15, 2026. Father shall take custody of the minor child at Noon on July 2, 2026. Counsel for Mother to coordinate exchange location with Father.
- 5) This Court confirms and adopts ALL of the orders issued by Napa County Superior Court in the Judgment filed May 15, 2026.
- 6) The Court hereby orders Counsel for Mother to prepare a First (1st) Amended TRO, which incorporates the child custody and visitation orders provided herein. The TRO is hereby amended to:
 - a. Remove the minor child as a protected party;
 - b. Remove any reference to “the persons in 3” within item #11.
 - c. Check boxes b and b(1) on item #11.
 - d. Remove any reference to “the persons in 3” within item #12.
 - e. Check boxes b and b(1) within item #12.
 - f. Amend item #15 to comport with the Napa County Child Custody and Visitation orders.

1 7) The Court hereby orders Counsel for Mother to prepare and Amended DV-116, which continues
2 the First (1st) Amended TRO to December 11, 2026.

3 8) Counsel for Mother shall prepare the Findings and Order After hearing.

4 9) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
5 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
6 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
7 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
8 proposed order after hearing directly to the court. Failure to submit the order after hearing within
9 10 days may allow the other party to prepare a proposed order and submit it to the court in
10 accordance with CA Rules of Court, Rule 5.125(d).